Syllabus

FIRST CHOICE WOMEN'S RESOURCE CENTERS, INC. *v.* DAVENPORT, ATTORNEY GENERAL OF NEW JERSEY

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE THIRD CIRCUIT

No. 24–781. Argued December 2, 2025—Decided April 29, 2026

First Choice Women's Resource Centers, Inc., is a religious nonprofit organization that has provided counseling and resources to pregnant women in New Jersey since 1985. Believing that life begins at conception, the group does not provide abortions or refer clients to others for abortions. In 2022, New Jersey's Attorney General established a "Reproductive Rights Strike Force" that issued a consumer alert accusing groups like First Choice of seeking to prevent people from accessing reproductive health care by providing false or misleading abortion information. The Attorney General served a subpoena on First Choice, commanding the group to produce 28 categories of documents, including documents reflecting the names, phone numbers, addresses, and places of employment of all individuals who had made donations to First Choice by any means other than through one specific webpage. Effectively, that demand required First Choice to provide personal information about donors who gave through two other websites, through the group's various social media pages, by mail, in person, or by any other means. The subpoena warned twice that failure to comply may render the group liable for contempt of court and other penalties.

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First Choice filed suit in federal district court under 42 U. S. C. § 1983, seeking to prevent the Attorney General from enforcing the document demands and arguing that the demand for donor information violated its First Amendment rights. First Choice alleged that its inability to guarantee its donors' anonymity in the face of the Attorney General's demands injured the group by discouraging donors from associating with it.

The district court denied First Choice's motion for a preliminary injunction and dismissed its complaint, holding that the group failed to state a justiciable claim as a matter of law because, absent any state court order compelling production, First Choice had yet to suffer an injury from the subpoena and thus lacked Article III standing. A divided panel of the Third Circuit affirmed.

Held: First Choice has established a present injury to its First Amendment associational rights sufficient to confer Article III standing. Pp. 183–199.

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(a) Article III's "standing" requirement consists of three elements: "injury in fact, causation, and redressability." *Diamond Alternative Energy, LLC* v. *EPA*, 606 U. S. 100, 110–111. This case centers on the injury-in-fact element, which requires "an injury that is concrete, particularized, and actual or imminent." *Id.*, at 111. Here, the Attorney General's subpoena has caused First Choice to suffer an ongoing injury to its First Amendment rights. Pp. 183–190.

(1) The First Amendment guarantees all Americans the rights to speak, worship, publish, assemble, and petition their government freely. Each of these rights necessarily carries with it "'a corresponding right to associate with others.'" *Americans for Prosperity Foundation* v. *Bonta*, 594 U. S. 595, 606. Associational rights carry special significance for political, social, religious, and other minorities, protecting "dissident expression" from marginalization or outright "suppression by the majority." *Roberts* v. *United States Jaycees*, 468 U. S. 609, 622.

This Court has long held that "compelled disclosure of affiliation with groups engaged in advocacy may constitute as effective a restraint on freedom of association" as more direct forms of suppression, *NAACP* v. *Alabama ex rel. Patterson*, 357 U. S. 449, 462, and thus has repeatedly subjected demands for private donor or member information to heightened First Amendment scrutiny. Throughout, the Court has recognized the critical role privacy plays in preserving protected association, and it has acknowledged that official demands for private donor information "inevitabl[y]" carry with them a "deterrent effect on the exercise of First Amendment rights." *Buckley* v. *Valeo*, 424 U. S. 1, 65. Pp. 184–188.

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(2) Against this backdrop, First Choice has established a present injury to its First Amendment associational rights and therefore has standing. An injury in fact arises when a defendant burdens a plaintiff's constitutional rights, and government demands for a charity's private donor information have just that effect. Such demands inevitably discourage association with groups engaged in protected First Amendment advocacy and encourage groups to cease or modify protected advocacy the government disfavors. All this occurs not just when a demand is enforced but when it is made and for as long as it remains outstanding. Pp. 188–190.

(b) The Attorney General's three reasons why First Choice has not suffered any injury sufficient to maintain this lawsuit each fails. Pp. 191–199.

(1) It does not matter that subpoenas issued by the Attorney General are purportedly "non-self-executing" such that any legal duty to produce records arises only when a state court agrees to enforce the subpoena. Whether the subpoena's demands and penalties were immediately enforceable or contingent on future court action, donors would

reasonably fear disclosure and hesitate to associate, and a reasonable recipient of the Attorney General's subpoena would be induced to trim its protected advocacy knowing it now stands in the government's crosshairs. This Court's precedents do not impose—and in fact foreclose—a rule that would nonetheless require First Choice to await a state court order enforcing the subpoena before the group could challenge the Attorney General's demands in federal court. Pp. 192–196.

(2) It is of no moment that the subpoena allows First Choice to solicit funds through one specific website without disclosing the identities of those who donate through it. By restricting how First Choice may interact privately with its donors, the Attorney General's subpoena burdened First Choice's associational rights. Were the rule otherwise, the government could channel the ability of disfavored groups to associate through narrow and state-preferred forms and achieve exactly what the First Amendment forbids. Pp. 196–198.

(3) It makes no difference that a state court may soon, and with the Attorney General's assent, issue a protective order requiring the Attorney General to keep confidential any documents First Choice produces pursuant to the subpoena. Putting aside the uncertainties about any prospective protective order, demands for private donor information burden First Amendment rights "[e]ven if there [is] no disclosure to the general public." *Shelton* v. *Tucker*, 364 U. S. 479, 486. An official demand for private donor information is enough to discourage reasonable individuals from associating with a group and to discourage groups from expressing dissident views. So long as the demand remains outstanding, "the pressure" to avoid ties and speech that "might displease" officials demanding disclosure can "be constant and heavy." *Ibid.* Pp. 198–199.

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Reversed and remanded.

GORSUCH, J., delivered the opinion for a unanimous Court.

Erin M. Hawley argued the cause for petitioner. With her on the briefs were *John J. Bursch*, *Lincoln Davis Wilson*, *Caroline C. Lindsay*, *Kristen K. Waggoner*, *James A. Campbell*, *Erik C. Baptist*, *Natalie Thompson*, and *Dalton A. Nichols*.

Vivek Suri argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Deputy Solicitor General Harris*, *Andrew G. Braniff*, and *Christopher C. Wang*.

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Sundeep Iyer, Chief Counsel, argued the cause for respondent. With him on the brief were *Matthew J. Platkin*, Attorney General of New Jersey, *Jeremy M. Feigenbaum*, Solicitor General, *David Leit*, Assistant Attorney General, and *Liza B. Fleming*, *Lauren E. Van Driesen*, and *Elizabeth R. Walsh*, Deputy Attorneys General.*

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*Briefs of *amici curiae* urging reversal were filed for A Woman's Concern, Inc., et al. by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, and *Walter M. Weber*; for the Americans for Prosperity Foundation by *Cynthia Fleming Crawford*; for Americans United for Life by *Steven H. Aden*, *Carolyn C. McDonnell*, and *Danielle Pimentel*; for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, *Mark Fitzgibbons*, and *Michael Boos*; for Annunciation House, Inc., by *Christine A. Budasoff* and *Allyson N. Ho*; for Anonymous Donors to Pregnancy Resource Centers by *Aaron M. Streett*; for the Becket Fund for Religious Liberty by *William J. Haun*, *Eric S. Baxter*, *Rebekah P. Ricketts*, and *Benjamin A. Fleshman*; for the Buckeye Institute by *David C. Tryon*; for Care Net Pregnancy Center of Paradise et al. by *Catherine Short* and *Sheila A. Green*; for the Chamber of Commerce of the United States of America by *Caleb P. Burns*, *Jeremy J. Broggi*, *Jonathan D. Urick*, and *Audrey Dos Santos*; for the Church of Jesus Christ of Latter-day Saints et al. by *R. Shawn Gunnarson*, *Christopher A. Bates*, and *Gene C. Schaerr*; for Democrats for Life of America et al. by *Catherine Glenn Foster*; for the Foundation for Individual Rights and Expression et al. by *Joshua A. House*; for the Hand of Hope Pregnancy Center by *Adam Mathews*, *Tiffany H. Bates*, *Kelly J. Shackelford*, *Jeffrey C. Mateer*, *David J. Hacker*, and *Jeremiah G. Dys*; for Heartbeat International, Inc., et al. by *Thomas L. Brejcha* and *Adam F. Mathews*; for the Institute for Free Speech by *Brett R. Nolan*; for the Liberty Justice Center by *Jeffrey Schwab*; for the Manhattan Institute et al. by *Preston N. Carter*, *Morgan D. Goodin*, *Ilya Shapiro*, and *Justin Marceau*; for Members of Congress by *Christopher O. Murray*, *Julian R. Ellis, Jr.*, and *Michael L. Francisco*; for the National Taxpayers Union Foundation by *Tyler Martinez*; for NetChoice by *Scott A. Keller* and *Steven P. Lehotsky*; for the Pacific Legal Foundation by *Ethan W. Blevins*; for the Reporters Committee for Freedom of the Press by *Bruce D. Brown* and *Lisa Zycherman*; for the Robertson Center for Constitutional Law by *Laura B. Hernandez* and *Christian B. Edmonds*; for Samaritan's Purse by *Christopher E. Mills*; for Save the Storks et al. by *Andrew Nussbaum*; for the Second Amendment Foundation by *Steven W. Fogg*; for the United States Conference of Catholic Bishops by *Gordon D. Todd* and *David S. Petron*; for the Washington Legal

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JUSTICE GORSUCH delivered the opinion of the Court.

New Jersey's Attorney General served a subpoena on a nonprofit organization demanding the identities of its finan-

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Foundation by *Cory L. Andrews* and *Zac Morgan*; and for O. Carter Snead et al. by *Michael H. McGinley*, and *Brian A. Kulp*.

Briefs of *amici curiae* urging affirmance were filed for the Commonwealth of Massachusetts et al. by *Andrea Joy Campbell*, Attorney General of Massachusetts, *Tasha Bahal*, Deputy State Solicitor, and *Allyson Slater* and *Morgan Carmen*, Assistant Attorneys General, by *Nicholas W. Brown*, Attorney General of Washington, and *Robert A. Hyde* and *Ben J. Brysacz*, Assistant Attorneys General, and *Peter B. Gonick*, Deputy Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Kristin K. Mayes* of Arizona, *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, and *Charity R. Clark* of Vermont; for the Federation of State Medical Boards by *Jack R. Bierig*; and for the Local Government Legal Center et al. by *John J. Korzen*, *Amanda K. Karras*, and *Erich R. Eiselt*.

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Briefs of *amici curiae* were filed for the State of Florida et al. by *James Uthmeier*, Attorney General of Florida, *Jeffrey Paul DeSousa*, Acting Solicitor General, *Jason J. Muehlhoff*, Chief Deputy Solicitor General, and *Samuel F. Elliott*, Deputy Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Treg Taylor* of Alaska, *Christopher M. Carr* of Georgia, *Raúl R. Labrador* of Idaho, *Brenna Bird* of Iowa, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty J. Jackley* of South Dakota, *Derek Brown* of Utah, and *John B. McCuskey* of West Virginia; for Advancing American Freedom et al. by *J. Marc Wheat*; for the American Legislative Exchange Council by *Shawn T. Sheehy* and *John Cycon*; for the Christian Legal Society et al. by *Lori Kepner*, *Steven T. McFarland*, and *Laura Nammo*; for the Equal Protection Project by *Timothy R. Snowball* and *William A. Jacobson*; for the Mountain States Legal Foundation by *William E. Trachman* and *James L. Kerwin*; for the New Jersey Family Pol-